



Education Act 1975

1975 CHAPTER 2

An Act to make further provision with respect to awards and grants by local education authorities; to enable the Secretary of State to bestow awards on students in respect of their attendance at adult education colleges; and to increase the proportion of the expenditure incurred in the maintenance or provision of aided and special agreement schools that can be met by contributions or grants from the Secretary of State.

[25th February 1975]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Awards
and grants
by local
education
authorities.
1962 c. 12.

1.—(1) Section 1 of the Education Act 1962 (local education authority awards for designated first degree courses or comparable courses) shall apply also to such courses at universities, colleges or other institutions in Great Britain and Northern Ireland as may for the time being be designated by or under regulations made for the purposes of that section as being—

- (a) full-time courses for the diploma of higher education or the higher national diploma; or
- (b) courses for the initial training of teachers.

(2) Paragraph (b) of subsection (1) of the said section 1 (eligibility for award dependent on possession of requisite educational qualifications) shall apply only in relation to courses for the time

being designated for the purposes of that section as being comparable to first degree courses.

(3) Section 2(1) of the said Act of 1962 (local education authority awards for courses of further education not falling within section 1 of that Act) shall apply also to any course for the training of teachers (whether held in Great Britain or elsewhere) to which section 1 of that Act does not apply including, in relation to a person undergoing training as a teacher, any course which he attends as such training and which is for the time being designated under section 4 of the Education Act 1973 (postgraduate courses). 1973 c. 16.

(4) Subsections (2) and (3) of section 4 of the said Act of 1962 (regulations under sections 1 to 3 of that Act) shall apply also in relation to subsection (1) above; and subsection (6) of that section (meaning of "training" and "person undergoing training" in section 2 of that Act) shall apply also in relation to subsection (3) above.

2. In section 3 of the Education Act 1962 (awards by Secretary of State for certain courses) after paragraph (c) there shall be inserted—

"(d) to bestow awards on persons who, at such time as may be prescribed by the regulations, have attained such age as may be so prescribed, being awards in respect of their attendance at courses at any institution which—

(i) is in receipt of payments under section 100 of the Education Act 1944 or section 75 of the Education (Scotland) Act 1962; and

(ii) is designated by or under the regulations as a college providing long-term residential courses of full-time education for adults";

and for the words "in the case of awards bestowed in accordance with paragraph (b) or paragraph (c) of this section" there shall be substituted the words "in the case of awards bestowed in accordance with paragraph (b), (c) or (d) of this section".

3. In sections 102 and 103 of the Education Act 1944 and section 1(2) of the Education Act 1967 (contributions and grants by Secretary of State equal to or not exceeding four-fifths of certain expenses incurred in the maintenance or provision of aided and special agreement schools) for the words "four-fifths" there shall be substituted the words "85 per cent."

4. The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Citation,
interpretation,
commence-
ment and
extent.

5.—(1) This Act may be cited as the Education Act 1975.

(2) The Education Acts 1944 to 1973 and this Act may be cited together as the Education Acts 1944 to 1975.

(3) Any reference in this Act to any enactment is a reference to that enactment as amended by any subsequent enactment.

(4) Subsection (2) of section 1 above shall not come into force until 1st September 1975; and subsection (3) of that section and Part I of the Schedule to this Act shall not come into force until the first regulations made by virtue of subsection (1)(b) of that section come into operation.

(5) Nothing in section 3 above or in Part II of the Schedule to this Act affects contributions or grants in respect of expenditure on work which was begun before 6th November 1974 or on the provision of the site on which, or buildings to which, any such work was done.

(6) This Act does not extend to Scotland or Northern Ireland

SCHEDULE

Section 4.

REPEALS

PART I

Chapter	Short Title	Extent of repeal
10 & 11 Eliz. 2. c. 12.	The Education Act 1962.	In section 2, in subsection (1) the words "(other than persons undergoing training as teachers)" and subsection (3).
1974 c. 7.	The Local Government Act 1974.	In section 1(5)(b) the words "or section 2(3) (grants to persons undergoing training as teachers)". In section 8(2), paragraph (b) together with the word "and" immediately preceding that paragraph.

PART II

Chapter	Short Title	Extent of repeal
1967 c. 3.	The Education Act 1967.	Section 1(1).